

December 8, 2025

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Dec 08 2025

Hon. Rob Bonta
Attorney General of California
1300 I Street, 17th Floor
Sacramento, CA 95814

INITIATIVE COORDINATOR
ATTORNEY GENERAL'S OFFICE

Attention: Ms. Anabel Renteria, Initiative Coordinator

Re: Request for Title and Summary for Proposed Initiative Constitutional
Amendment

Dear Mr. Bonta:

Pursuant to Article II, Section 10(d) of the California Constitution, I hereby submit the attached proposed Initiative Constitutional Amendment to your office and request preparation of a circulating title and summary of the chief points and purposes of the measure as provided by law. Included with this submission are the proponent affidavit(s) signed by the proponent(s) of this measure as required by Sections 9001 and 9608 of the California Elections Code, along with a check for \$2,000.00.

All inquiries or correspondence relative to this initiative should be directed to Kurt R. Oneto at koneto@nmgovlaw.com or 916-446-6752.

Thank you for your assistance.

Sincerely,



Kurt R. Oneto, Proponent

Enclosure: Proposed Initiative Constitutional Amendment

Section 1. Title.

This Act shall be known and may be cited as the California Government Efficiency Improvement Act of 2026.

Section 2. Findings and Declarations.

The People of the State of California hereby find and declare the following:

(a) Every day, Californians are facing an affordability crisis. Costs for housing, food, electricity, health care, home and auto insurance, and many other life necessities continue to escalate.

(b) In addition, Californians are also among the highest-taxed people in the United States. A recent analysis by a non-partisan research institute concluded that California ranks 48th in the nation in subjecting its population to taxes, when considering individual income taxes, sales taxes, property taxes, and other forms of taxation. California is behind only New Jersey and the District of Columbia, and the State has the highest state sales tax in the nation, the highest top income tax rate, and the highest tax on gasoline, among other indicators.

(c) Before asking taxpayers to pay even more, government must use existing tax dollars wisely. Some of these efforts are already underway. For example, the Newsom Administration has sought to increase efficiency in government through greater utilization of technology and automation, creation of an Office of Data Innovation, and modernizing the Department of Motor Vehicles. This is consistent with earlier efforts President Obama undertook at the federal level aimed at reducing waste in government and cutting underperforming programs.

(d) While these existing efforts are a good start, more should be done to reduce inefficiency and cut government waste. For example, recent studies have found that as much as 25 cents of every dollar in some programs are lost to inefficiency or waste.

(e) Nonetheless, the Legislature and special interest groups continue to propose new and higher taxes for pet projects without doing the hard work of ensuring that government programs are already using their existing revenues as efficiently as possible. Californians have a right to demand that state government should improve efficiency and cut waste before asking us to pay even higher taxes—which make our cost-of-living crisis even worse.

Section 3. Statement of Purpose.

In enacting this Act, the purpose and intent of the People of the State of California is to prohibit the imposition, collection, or enforcement of any new tax to fund specific programs or purposes unless those programs or purposes are also required to improve efficiency and cut wasteful spending.

Section 4. Article XXIV is added to the California Constitution, to read:

ARTICLE XXIV

REINVESTING TAXPAYER DOLLARS IN HIGHER-PERFORMING PROGRAMS

SECTION 1.

(a) On or after January 1, 2026, no state law enacted by the Legislature, and no statewide initiative measure proposed or adopted pursuant to Section 8 of Article II or Section 3 of Article XVIII, may establish, enact, create, impose, or raise a new special tax unless the state law or statewide initiative measure also directly imposes an express legal requirement upon the government entities or departments that are recipients of the tax revenue to develop and implement a plan to eliminate their lowest-performing programs and reinvest those savings in higher-performing programs. The plan required by this subdivision must shift an amount equal to at least 10% of the state revenues received by the recipient government entities or departments in the immediately prior fiscal year from the lowest-performing programs to higher-performing programs.

(b) A statewide initiative measure that extends the operation or imposition of a special tax first imposed prior to January 1, 2026 is not subject to the provisions of this section.

(c) For purposes of this section, “special tax” means a tax that can only be used to fund specific, as opposed to unlimited, purposes.

SEC. 2.

This article applies to all statewide initiative measures submitted to the electors on or after January 1, 2026, including measures that appear on the ballot at the same election at which the measure adding this article is approved by the electors.

Section 5. Conflicting Measures.

(a)(1) In the event that this initiative measure appears on the same statewide election ballot as another initiative measure containing a special tax that does not comply with the rules set forth in Section 4 of this Act, then that other initiative measure shall be deemed to be in conflict with this measure. In the event that this initiative measure receives a greater number of affirmative votes, the provisions of this measure shall prevail in their entirety, and the provisions of the other measure shall be null and void.

(2) For purposes of this section, “special tax” shall have the same meaning as set forth in Section 4 of this Act.

(b) If this initiative measure is approved by the voters but superseded in whole or in part by any other conflicting initiative measure approved by the voters at the same election, and such conflicting measure is later held invalid, this measure shall be self-executing and given full force and effect

Section 6. Severability.

The provisions of this Act are severable. If any portion, section, subdivision, paragraph, clause, subclause, sentence, phrase, word, or application of this Act is for any reason held to be invalid by a decision of any court of competent jurisdiction, that decision shall not affect the validity of the remaining portions of this Act. The People of the State of California hereby declare that they would have adopted this Act and each and every portion, section, subdivision, paragraph, clause, subclause, sentence, phrase, word, and application not declared invalid or unconstitutional without regard to whether any part of this Act or application thereof would be subsequently declared invalid.

Section 7. Effective Date.

This Act shall take effect at the earliest possible date in accordance with Section 10 of Article II of the California Constitution. This Act shall become operative on the same day it takes effect.

Section 8. Liberal Construction.

This Act shall be liberally construed to give effect to its intent and purposes.

Section 9. Legal Defense.

The purpose of this section is to ensure that the people's precious right of initiative cannot be improperly annulled by state politicians who refuse to defend the will of the voters. Therefore, if this Act is approved by the voters of the State of California and thereafter subjected to a legal challenge which attempts to limit the scope or application of this Act in any way, or alleges this Act violates any state or federal law in whole or in part, and both the Governor and Attorney General refuse to defend this Act to the fullest extent possible on behalf of the State of California, then the following actions shall be taken:

(a) Notwithstanding anything to the contrary contained in Chapter 6 (commencing with Section 12500) of Part 2 of Division 3 of Title 2 of the Government Code or any other law, the Attorney General shall appoint independent counsel to faithfully and vigorously defend this Act to the fullest extent possible on behalf of the State of California.

(b) Before appointing or thereafter substituting independent counsel, the Attorney General shall exercise due diligence in determining the qualifications of independent counsel and shall obtain written affirmation from independent counsel that independent counsel will faithfully and vigorously defend this Act to the fullest extent possible. The written affirmation shall be made publicly available immediately upon request.

(c) In order to support the defense of this Act in instances where the Governor and Attorney General fail to do so despite the will of the voters, a continuous appropriation is hereby made from the General Fund to the Controller, without regard to fiscal years, in an amount necessary to cover the costs of retaining independent counsel to faithfully and vigorously defend this Act on behalf of the State of California to the fullest extent possible.